



Bill Number: H.B. 2995

Mesnard Floor Amendment

**Reference to: FEDERALISM AND
FAMILY LAW Committee amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Adds an emergency clause.
2. Requires the court, in any legal decision-making and parenting time matter, to assign the highest priority to the personal safety and physical, mental and emotional well-being of the child and domestic violence victim.
3. Prohibits the court from:
 - a) requiring the victim to prove that the domestic violence was severe or frequent enough to justify restricting the legal decision-making or parenting time of the parent who committed domestic violence; or
 - b) describing the parents' domestic violence as mutual or apply the rebuttable presumption to both parents, unless both parents lacked justification for their domestic violence to a similar degree and inflicted similar injury.
4. Requires the court to otherwise apply the rebuttable presumption only to the parent whose conduct and motivation were more serious under the statutory definition of *domestic violence*.
5. Requires the court, if a parent who committed domestic violence seeks to rebut the rebuttable presumption, to consider:
 - a) the severity and frequency of the parent's domestic violence against any person, including an assessment of whether the domestic violence was aggravated by:
 - i. physical injury or emotional trauma;
 - ii. use or threatened use of a firearm or other dangerous weapon;
 - iii. strangulation; or
 - iv. multiple forms of coercive control;
 - b) the extent to which the parent denied, deflected or minimized the domestic violence during treatment, forensic assessment, mandatory disclosure, formal discovery or courtroom proceedings;
 - c) whether the parent committed domestic violence with sufficient severity or frequency that the passage of time is not a mitigating factor;
 - d) whether the child has imitated any aspect of the parent's domestic violence behaviors; and
 - e) the parent's attendance at a domestic violence treatment program.
6. Requires the court to disregard the following factors as irrelevant to the rebuttable presumption:
 - a) the child's absence from the scene of any domestic violence;
 - b) the child's unawareness that domestic violence occurred; and

Amendment explanation prepared by Anna Nguyen

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- c) the child's preference for instating, maintaining or increasing contact with the parent who committed domestic violence.
7. Prohibits the court from granting any of the following to a parent who is restricted by the rebuttable presumption:
 - a) sole or joint legal decision-making, unless the parent overcomes the presumption by clear and convincing evidence;
 - b) unsupervised parenting time, unless the parent overcomes the presumption by clear and convincing evidence; or
 - c) supervised parenting time, unless the parent overcomes the presumption by a preponderance of the evidence.
 8. Requires the court, for a parent who has committed domestic violence, to adopt prescribed precautions that prioritize the personal safety and physical, mental and emotional well-being of the child and other parent.
 9. Removes the requirement that the court, when determining whether the parent who committed domestic violence, must evaluate whether a parent's chosen treatment program was relevant and proportionate to the parent's history of domestic violence.
 10. Removes the requirement that the court, in a modification of a legal decision-making or parenting time proceeding, decide a new allegation of domestic violence by applying the same public policy, priorities, procedures and definition prescribed pursuant to statutory requirements for considering an allegation of domestic violence.
 11. Modifies the definitions of *domestic violence* and *coercive control*.
 12. Makes technical and conforming changes.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2995
(Reference to FEDERALISM AND FAMILY LAW Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
{~~[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]~~} indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
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<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-403.03, Arizona Revised Statutes, is amended
3 to read:

4 25-403.03. Domestic violence and child abuse; court
5 considerations; definitions

6 ~~A. Notwithstanding subsection D of this section, joint legal~~
7 ~~decision-making shall not be awarded if the court makes a finding of the~~
8 ~~existence of significant domestic violence pursuant to section 13-3601 or~~
9 ~~if the court finds by a preponderance of the evidence that there has been~~
10 ~~a significant history of domestic violence.~~

11 ~~B. The court shall consider evidence of domestic violence as being~~
12 ~~contrary to the best interests of the child. The court shall consider the~~
13 ~~safety and well-being of the child and of the victim of the act of~~
14 ~~domestic violence to be of primary importance. The court shall consider a~~
15 ~~perpetrator's history of causing or threatening to cause physical harm to~~
16 ~~another person.~~

~~1 C. To determine if a person has committed an act of domestic
2 violence the court, subject to the rules of evidence, shall consider all
3 relevant factors including the following:
4 1. Findings from another court of competent jurisdiction.
5 2. Police reports.
6 3. Medical reports.
7 4. Records of the department of child safety.
8 5. Domestic violence shelter records.
9 6. School records.
10 7. Witness testimony.
11 D. If the court determines that a parent who is seeking sole or
12 joint legal decision-making has committed an act of domestic violence
13 against the other parent, there is a rebuttable presumption that an award
14 of sole or joint legal decision-making to the parent who committed the act
15 of domestic violence is contrary to the child's best interests. This
16 presumption does not apply if both parents have committed an act of
17 domestic violence. For the purposes of this subsection, a person commits
18 an act of domestic violence if that person does any of the following:
19 1. Intentionally, knowingly or recklessly causes or attempts to
20 cause sexual assault or serious physical injury.
21 2. Places a person in reasonable apprehension of imminent serious
22 physical injury to any person.
23 3. Engages in a pattern of behavior for which a court may issue an
24 ex parte order to protect the other parent who is seeking child custody or
25 to protect the child and the child's siblings.
26 E. To determine if the parent has rebutted the presumption the
27 court shall consider all of the following:
28 1. Whether the parent has demonstrated that being awarded sole or
29 joint legal decision-making or substantially equal parenting time is in
30 the child's best interests.
31 2. Whether the parent has successfully completed a batterer's
32 prevention program.
33 3. Whether the parent has successfully completed a program of
34 alcohol or drug abuse counseling, if the court determines that counseling
35 is appropriate.
36 4. Whether the parent has successfully completed a parenting class,
37 if the court determines that a parenting class is appropriate.
38 5. If the parent is on probation, parole or community supervision,
39 whether the parent is restrained by a protective order that was granted
40 after a hearing.
41 6. Whether the parent has committed any further acts of domestic
42 violence.
43 F. If the court finds that a parent has committed an act of
44 domestic violence, that parent has the burden of proving to the court's
45 satisfaction that parenting time will not endanger the child or
46 significantly impair the child's emotional development. If the parent
47 meets this burden to the court's satisfaction, the court shall place~~

1 ~~conditions on parenting time that best protect the child and the other~~
2 ~~parent from further harm. The court may:~~
3 ~~1. Order that an exchange of the child must occur in a protected~~
4 ~~setting as specified by the court.~~
5 ~~2. Order that an agency specified by the court must supervise~~
6 ~~parenting time. If the court allows a family or household member to~~
7 ~~supervise parenting time, the court shall establish conditions that this~~
8 ~~person must follow during parenting time.~~
9 ~~3. Order the parent who committed the act of domestic violence to~~
10 ~~attend and complete, to the court's satisfaction, a program of~~
11 ~~intervention for perpetrators of domestic violence and any other~~
12 ~~counseling the court orders.~~
13 ~~4. Order the parent who committed the act of domestic violence to~~
14 ~~abstain from possessing or consuming alcohol or controlled substances~~
15 ~~during parenting time and for twenty-four hours before parenting time.~~
16 ~~5. Order the parent who committed the act of domestic violence to~~
17 ~~pay a fee for the costs of supervised parenting time.~~
18 ~~6. Prohibit overnight parenting time.~~
19 ~~7. Require a bond from the parent who committed the act of domestic~~
20 ~~violence for the child's safe return.~~
21 ~~8. Order that the address of the child and the other parent remain~~
22 ~~confidential.~~
23 ~~9. Impose any other condition that the court determines is~~
24 ~~necessary to protect the child, the other parent and any other family or~~
25 ~~household member.~~
26 ~~6. The court shall not order joint counseling between a victim and~~
27 ~~the perpetrator of domestic violence. The court may provide a victim with~~
28 ~~written information about available community resources related to~~
29 ~~domestic violence.~~
30 ~~A. {{IN ANY LEGAL DECISION-MAKING OR PARENTING TIME MATTER}} {{AS A~~
31 ~~DECLARED PUBLIC POLICY OF THIS STATE AND NOTWITHSTANDING SECTION 25-103,~~
32 ~~SUBSECTION B}}, THE COURT SHALL CONSIDER DOMESTIC VIOLENCE {{, INCLUDING~~
33 ~~CHILD ABUSE,}} AS CONTRARY TO {{THE}} {{A CHILD'S}} BEST INTERESTS {{OF~~
34 ~~THE CHILD AND SHALL ASSIGN PRIMARY IMPORTANCE TO THE SAFETY AND WELL-BEING~~
35 ~~OF BOTH THE CHILD AND DOMESTIC VIOLENCE VICTIM. IF AN EXPRESS OR IMPLIED~~
36 ~~CONFLICT ARISES BETWEEN THE REQUIREMENTS OF THIS SECTION AND A COMPETING~~
37 ~~PRESUMPTION, MANDATE OR PUBLIC POLICY IN THIS TITLE [THAT IS NOT DIRECTLY~~
38 ~~RELATED TO A CHILD'S SAFETY], THE PROVISIONS OF THIS SECTION TAKE~~
39 ~~PRIORITY}}. {{IN ANY LEGAL DECISION-MAKING AND PARENTING TIME MATTER, THE~~
40 ~~COURT SHALL ASSIGN THE HIGHEST PRIORITY TO THE PERSONAL SAFETY AND~~
41 ~~PHYSICAL, MENTAL AND EMOTIONAL WELL-BEING OF BOTH THE CHILD AND DOMESTIC~~
42 ~~VIOLENCE VICTIM.}}~~
43 ~~B. {{IN ANY}} {{BEFORE ENTERING AN ORDER FOR}} LEGAL~~
44 ~~DECISION-MAKING OR PARENTING TIME {{MATTER}}, THE COURT SHALL {{MAKE}}~~
45 ~~{{RESOLVE ANY DOMESTIC VIOLENCE ALLEGATION BY MAKING}} SPECIFIC {{AND~~
46 ~~DETAILED}} {{WRITTEN}} FINDINGS ON THE RECORD ABOUT EACH {{FACTOR THAT IS~~
47 ~~REQUIRED BY THIS [SECTION. THE COURT SHALL EXPLAIN IN DETAIL WHY THE~~

1 ~~COURT'S FINDINGS REGARDING DOMESTIC VIOLENCE SERVE THE CHILD'S BEST~~
2 ~~INTERESTS, INCLUDING THE PRESUMPTION PRESCRIBED IN SUBSECTION F OF THIS~~
3 ~~SECTION AND ANY REBUTTAL TO THE PRESUMPTION THAT IS OFFERED PURSUANT TO~~
4 ~~SUBSECTION G OF THIS SECTION. ON APPEAL, THE LEGAL SUFFICIENCY OF EACH~~
5 ~~FINDING AND EXPLANATION SHALL BE REVIEWED DE NOVO]~~ ~~[SUBSECTION AND THAT IS~~
6 ~~PRESENTED THROUGH EVIDENCE}}~~ ~~{{OF THE FOLLOWING CONSIDERATIONS FOR WHICH~~
7 ~~EVIDENCE WAS}}~~ ADMITTED AT A TRIAL OR OTHER EVIDENTIARY HEARING] ~~{{. THE~~
8 ~~COURT'S FINDINGS MUST [ADDRESS] [INCLUDE] ALL OF THE FOLLOWING}}:~~
9 ~~[1. COERCIVE CONTROL.~~
10 ~~2. EVIDENCE THAT MAY SUPPORT A DOMESTIC VIOLENCE CLAIM.~~
11 ~~3. THE IMPACT, SEVERITY AND CIRCUMSTANCES OF AN ACT OR ACTS OF~~
12 ~~DOMESTIC VIOLENCE THAT HAVE OCCURRED.~~
13 ~~4. THE MANDATORY PRESUMPTION AGAINST AWARDED LEGAL DECISION-MAKING~~
14 ~~OR PARENTING TIME TO A PARENT WHO HAS COMMITTED AN ACT OR ACTS OF DOMESTIC~~
15 ~~VIOLENCE.~~
16 ~~5. WHETHER A PARENT WHO HAS COMMITTED AN ACT OR ACTS OF DOMESTIC~~
17 ~~VIOLENCE REBUTTED THE MANDATORY PRESUMPTION UNDER SUBSECTION F OF THIS~~
18 ~~SECTION.]~~
19 [1. A {{COMPLETE}} {{THOROUGH}} DESCRIPTION OF THE EVIDENCE THAT
20 JUSTIFIED OR PREVENTED A FINDING {{PURSUANT TO}} {{UNDER}} SUBSECTION C OF
21 THIS SECTION THAT {{AN ACT OR ACTS OF}} DOMESTIC VIOLENCE OCCURRED.
22 2. {{AFTER CONSIDERING EACH FACTOR PRESCRIBED IN SUBSECTION E OF
23 THIS SECTION.}} A {{FULL}} {{THOROUGH}} EXPLANATION {{FOR}} WHY {{THE
24 EVIDENCE PRESENTED PURSUANT TO EACH OF THE CRITERIA PRESCRIBED BY
25 SUBSECTION G OF THIS SECTION}} {{A PARENT WHO COMMITTED DOMESTIC
26 VIOLENCE}} DID OR DID NOT REBUT THE MANDATORY PRESUMPTION THAT IS
27 {{PRESCRIBED}} {{IMPOSED}} BY SUBSECTION {{F}} {{D}} OF THIS SECTION.
28 3. {{AN}} {{A THOROUGH}} EXPLANATION {{FOR}} WHY THE COURT'S CHOICE
29 OF {{REMEDIES}} {{PRECAUTIONS}} PRESCRIBED IN SUBSECTION H OF THIS SECTION
30 IS IN THE CHILD'S BEST INTERESTS.]
31 C. A {{CLAIM OF AN ACT OR ACTS OF}} DOMESTIC VIOLENCE {{CLAIM}}
32 SHALL BE ESTABLISHED BY A PREPONDERANCE OF THE EVIDENCE. CORROBORATION
33 FROM EXHIBITS OR WITNESS TESTIMONY {{OF ANOTHER PERSON}} IS NOT REQUIRED.
34 SUBJECT TO THE EVIDENTIARY STANDARD {{APPLIED TO}} {{IN EFFECT FOR}} THAT
35 PROCEEDING {{PURSUANT TO THE ARIZONA RULES OF FAMILY LAW PROCEDURE}}, THE
36 COURT SHALL CONSIDER ALL OF THE FOLLOWING:
37 1. FACTUAL DETERMINATIONS {{OF AN ACT OR ACTS OF}} {{RELATED TO}}
38 DOMESTIC VIOLENCE FROM A COURT OF COMPETENT JURISDICTION.
39 2. EVIDENCE THAT IS COLLECTED AND REPORTS THAT ARE PREPARED BY A
40 LAW ENFORCEMENT AGENCY, THE DEPARTMENT OF CHILD SAFETY AND ANY OTHER
41 GOVERNMENT AGENCY.
42 3. THE ALLEGED VICTIM'S MEDICAL OR BEHAVIORAL HEALTH RECORDS, IF
43 THE VICTIM WAIVES THE ASSOCIATED PRIVILEGE {{OR OTHER}} {{AND ANY
44 SEPARATE}} RIGHT TO CONFIDENTIALITY {{UNDER STATE OR FEDERAL LAW}}.
45 4. RECORDS FROM A SHELTER FOR VICTIMS OF DOMESTIC VIOLENCE AS
46 DEFINED IN SECTION 36-3001{{, IF THE VICTIM PROVIDES INFORMED WRITTEN
47 CONSENT}}.

1 5. EDUCATIONAL AND SCHOOL RECORDS.

2 6. ~~{{A COLLATERAL ACT OR}} {{OTHER}} ACTS OF DOMESTIC VIOLENCE~~
3 ~~AGAINST ANY PERSON {{BY THE PARENT WHO IS THE SUBJECT OF THE ALLEGATION OF~~
4 ~~COMMITTING AN ACT OR ACTS OF DOMESTIC VIOLENCE}} {{THAT TEND TO PROVE THE~~
5 ~~EXISTENCE OF COERCIVE CONTROL, EVEN IF THOSE OTHER ACTS HAVE BEEN DECIDED,~~
6 ~~PREDATE THE LAST DECREE OR COULD HAVE BEEN LITIGATED AT ANOTHER TIME OR~~
7 ~~PLACE}}.~~

8 7. WITNESS TESTIMONY.

9 D. IF THE COURT DETERMINES THAT A PARENT ~~{{HAS}}~~ COMMITTED ~~{{AN ACT~~
10 ~~OR ACTS OF}}~~ DOMESTIC VIOLENCE, ~~{{THE COURT SHALL CONSIDER AND WEIGH ALL~~
11 ~~OF THE FOLLOWING NONEXCLUSIVE FACTORS, AND ANY OTHER RELEVANT~~
12 ~~CONSIDERATIONS, WHEN ENTERING AN AWARD OF LEGAL DECISION-MAKING, A~~
13 ~~PARENTING TIME SCHEDULE AND OTHER FEATURES OF THE PARENTING PLAN REQUIRED~~
14 ~~BY SECTION 25-403.02. THE COURT SHALL DETERMINE WHETHER THE ACT OR ACTS~~
15 ~~OF DOMESTIC VIOLENCE MEET ANY OF THE FOLLOWING:~~

16 1. ~~RISKED OR INFLICTED PHYSICAL INJURY OR EMOTIONAL TRAUMA ON THE~~
17 ~~OTHER PARENT OR CHILD.~~

18 2. ~~INVOLVED THE THREAT OR USE OF A FIREARM OR OTHER DANGEROUS~~
19 ~~WEAPON.~~

20 3. ~~INVOLVED THE THREAT OR USE OF STRANGULATION AS DESCRIBED IN~~
21 ~~SECTION 13-1204, SUBSECTION B, PARAGRAPH 1.~~

22 4. ~~INVOLVED MULTIPLE FORMS OF COERCIVE CONTROL, INCLUDING WHETHER~~
23 ~~PHYSICAL VIOLENCE, NO MATTER HOW INFREQUENT, WAS USED TO INTENSIFY THE~~
24 ~~IMPACT OF OTHER FORMS OF COERCIVE CONTROL.~~

25 5. ~~COMPROMISED THE VICTIM'S EDUCATION, EMPLOYMENT OR CAREER GOALS.~~

26 6. ~~SIGNIFICANTLY DAMAGED THE VICTIM'S REPUTATION OR RELATIONSHIPS~~
27 ~~WITH FAMILY, FRIENDS OR OTHERS.~~

28 7. ~~CREATED A QUESTION AS TO WHETHER THE PARENT WHO COMMITTED THE~~
29 ~~ACT OR ACTS OF DOMESTIC VIOLENCE CAN SERVE AS A SUITABLE ROLE MODEL FOR~~
30 ~~THE CHILD, INCLUDING WITH RESPECT TO PARENTING TIME.~~

31 8. ~~REVEALED A DISDAIN FOR THE OTHER PARENT OR CHILD THAT WOULD~~
32 ~~COMPLICATE OR PREVENT EFFECTIVE LEGAL DECISION-MAKING.~~

33 9. ~~ARE DENIED, DEFLECTED OR MINIMIZED DURING TREATMENT, FORENSIC~~
34 ~~ASSESSMENT, FORMAL DISCOVERY OR COURTROOM PROCEEDINGS BY THE PARENT WHO~~
35 ~~COMMITTED THE ACT OR ACTS OF DOMESTIC VIOLENCE.~~

36 10. ~~OCCURRED OVER A PERIOD OF TIME AND WITH SUFFICIENT SEVERITY OR~~
37 ~~FREQUENCY THAT THE PASSAGE OF TIME OR REMOTENESS OF AN EARLIER ACT OR ACTS~~
38 ~~OF DOMESTIC VIOLENCE CONSTITUTE AN AGGRAVATING AND NOT A MITIGATING~~
39 ~~FACTOR.~~

40 E. ~~[WHEN WEIGHING EVIDENCE OF A COLLATERAL ACT OR ACTS OF DOMESTIC~~
41 ~~VIOLENCE, THE COURT MAY CONSIDER THE PASSAGE OF TIME OR PRIOR JUDICIAL~~
42 ~~REVIEW. THE COURT MAY NOT REFUSE EVIDENCE OF A COLLATERAL ACT OR ACTS OF~~
43 ~~DOMESTIC VIOLENCE ON THE GROUNDS THAT THE ALLEGED ACT OR ACTS OF DOMESTIC~~
44 ~~VIOLENCE OR A RELATED LEGAL CLAIM HAS] [THE COURT SHALL CONSIDER A~~
45 ~~COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE AS DESCRIBED IN SUBSECTION C,~~
46 ~~PARAGRAPH 6 OF THIS SECTION IF THE COLLATERAL ACT OR ACTS OF DOMESTIC~~
47 ~~VIOLENCE TEND TO PROVE THE EXISTENCE OF COERCIVE CONTROL, EVEN IF THE~~

1 ~~COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE HAVE] BEEN DECIDED, [PREDATES]~~
2 ~~[PREDATE] THE LAST DECREE [ISSUED PURSUANT TO THIS CHAPTER] OR COULD HAVE~~
3 ~~BEEN LITIGATED AT ANOTHER TIME OR PLACE. [THE COURT SHALL EVALUATE~~
4 ~~WHETHER EVIDENCE OF A COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE DOES ANY~~
5 ~~OF THE FOLLOWING:~~
6 1. ~~ESTABLISHES RECURRING BEHAVIOR BY THE PARENT ALLEGED TO HAVE~~
7 ~~COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE, INCLUDING COERCIVE CONTROL.~~
8 2. ~~PROVES THE MOTIVE, OPPORTUNITY, INTENT, PREPARATION, PLAN,~~
9 ~~KNOWLEDGE, IDENTITY OR ABSENCE OF MISTAKE OR ACCIDENT BY THE PARENT~~
10 ~~ALLEGED TO HAVE COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE.~~
11 3. ~~EXPLAINS AN OTHERWISE EXCESSIVE RESPONSE BY THE ALLEGED VICTIM~~
12 ~~TO A MORE RECENT EVENT AS WELL AS OTHER REACTIVE OR PROTECTIVE BEHAVIOR BY~~
13 ~~THE ALLEGED VICTIM.]~~
14 F. ~~IF THE COURT DETERMINES THAT A PARENT COMMITTED AN ACT OR ACTS~~
15 ~~OF DOMESTIC VIOLENCE, THERE IS A MANDATORY REBUTTABLE PRESUMPTION THAT AN~~
16 ~~AWARD OF LEGAL DECISION-MAKING OR PARENTING TIME TO THE PARENT WHO~~
17 ~~COMMITTED THE ACT OR ACTS OF DOMESTIC VIOLENCE IS CONTRARY TO THE CHILD'S~~
18 ~~BEST INTERESTS. THE COURT MAY NOT REQUIRE THE VICTIM OR CHILD TO PROVE~~
19 ~~THAT SHARED LEGAL DECISION-MAKING OR PARENTING TIME WOULD HARM THE CHILD.~~
20 ~~[A REBUTTABLE PRESUMPTION DOES NOT ARISE IF MUTUAL ACTS OF DOMESTIC~~
21 ~~VIOLENCE OCCURRED. THE COURT MAY NOT DESCRIBE AN ACT OR ACTS OF DOMESTIC~~
22 ~~VIOLENCE AS MUTUAL OR ENTER A LEGAL DECISION-MAKING OR PARENTING TIME~~
23 ~~ORDER THAT TREATS DOMESTIC VIOLENCE AS MUTUAL, UNLESS THE EVIDENCE~~
24 ~~ESTABLISHES THAT BOTH PARENTS HAD THE SAME MOTIVE FOR THEIR ACTIONS,~~
25 ~~LACKED JUSTIFICATION TO SIMILAR DEGREES AND INFLICTED COMPARABLE HARM.]~~
26 ~~[IF THE COURT FINDS THAT BOTH PARENTS HAVE COMMITTED AN ACT OR ACTS OF~~
27 ~~DOMESTIC VIOLENCE, EACH PARENT IS SUBJECT TO THE MANDATORY REBUTTABLE~~
28 ~~PRESUMPTION DESCRIBED IN THIS SUBSECTION. IF NEITHER PARENT CAN REBUT THE~~
29 ~~MANDATORY PRESUMPTION, THE COURT SHALL CONSIDER REFERRING THE CHILD FOR~~
30 ~~DEPENDENCY PROCEEDINGS PURSUANT TO TITLE 8, CHAPTER 4, ARTICLE 8 IF A~~
31 ~~REFERRAL IS CONSISTENT WITH THE BEST INTERESTS OF THE CHILD.]]} {{THERE IS~~
32 A MANDATORY REBUTTABLE PRESUMPTION THAT AN AWARD OF LEGAL DECISION-MAKING
33 OR PARENTING TIME TO THAT PARENT IS CONTRARY TO THE CHILD'S BEST
34 INTERESTS. THE COURT MAY NOT DO EITHER OF THE FOLLOWING:
35 1. REQUIRE THE VICTIM TO PROVE THAT THE DOMESTIC VIOLENCE WAS
36 SEVERE OR FREQUENT ENOUGH TO JUSTIFY RESTRICTING THE LEGAL DECISION-MAKING
37 OR PARENTING TIME OF THE PARENT WHO COMMITTED DOMESTIC VIOLENCE.
38 2. DESCRIBE THE PARENTS' DOMESTIC VIOLENCE AS MUTUAL OR APPLY THE
39 PRESUMPTION OF THIS SUBSECTION TO BOTH PARENTS, UNLESS BOTH PARENTS LACKED
40 JUSTIFICATION FOR THEIR DOMESTIC VIOLENCE TO A SIMILAR DEGREE AND
41 INFLICTED SIMILAR INJURY. THE COURT SHALL OTHERWISE APPLY THE PRESUMPTION
42 ONLY TO THE PARENT WHOSE CONDUCT AND MOTIVATION WERE MORE SERIOUS UNDER
43 THE DEFINITION OF DOMESTIC VIOLENCE.}}
44 {{G.}} {{E.}} {{TO DETERMINE WHETHER THE PARENT WHO COMMITTED AN
45 ACT OR ACTS OF}} {{IF A PARENT WHO COMMITTED}} DOMESTIC VIOLENCE {{HAS
46 REBUTTED}} {{SEEKS TO REBUT}} THE MANDATORY PRESUMPTION {{PRESCRIBED IN

1 ~~SUBSECTION F OF [THE] [THIS] SECTION}}~~ ~~{{IMPOSED BY SUBSECTION D OF THIS~~
2 ~~SECTION}}~~, ~~THE COURT SHALL~~ ~~{{DO ALL OF THE FOLLOWING:~~
3 ~~1. REVIEW THE [COURT'S FINDINGS PRESCRIBED BY SUBSECTION D OF THIS~~
4 ~~SECTION AND APPLY THE COURT'S FINDINGS TO THE REBUTTAL DETERMINATION]~~
5 ~~[CONSIDERATIONS THAT ARE PRESCRIBED IN SUBSECTION D OF THIS SECTION AND~~
6 ~~MAKE FINDINGS AND EXPLANATIONS AS REQUIRED BY SUBSECTION B, PARAGRAPH 2 OF~~
7 ~~THIS SECTION].~~
8 ~~2. CONSIDER A COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE BY THE~~
9 ~~PARENT AGAINST ANYONE.~~
10 ~~3. NOT TREAT ANY OF THE FOLLOWING CONSIDERATIONS AS MITIGATION OR~~
11 ~~RELEVANT TO THE REBUTTAL OF THE MANDATORY PRESUMPTION:~~
12 ~~(a) THE CHILD'S ABSENCE FROM THE LOCATION WHERE THE ACT OR ACTS OF~~
13 ~~DOMESTIC VIOLENCE OCCURRED.~~
14 ~~(b) THE CHILD'S UNAWARENESS THAT A PARENT COMMITTED THE ACT OR ACTS~~
15 ~~OF DOMESTIC VIOLENCE.~~
16 ~~(c) THE CHILD'S PREFERENCE FOR REINSTATING, MAINTAINING OR~~
17 ~~INCREASING PARENTING TIME WITH A PARENT WHO COMMITTED THE ACT OR ACTS OF~~
18 ~~DOMESTIC VIOLENCE.}}~~ ~~{{CONSIDER ALL OF THE FOLLOWING:~~
19 ~~1. THE SEVERITY AND FREQUENCY OF THE PARENT'S DOMESTIC VIOLENCE~~
20 ~~AGAINST ANY PERSON, INCLUDING AN ASSESSMENT OF WHETHER THAT VIOLENCE WAS~~
21 ~~AGGRAVATED BY ANY OF THE FOLLOWING:~~
22 ~~(a) PHYSICAL INJURY OR EMOTIONAL TRAUMA.~~
23 ~~(b) USE OR THREATENED USE OF A FIREARM OR OTHER DANGEROUS WEAPON.~~
24 ~~(c) STRANGULATION AS DESCRIBED IN SECTION 13-1204, SUBSECTION B,~~
25 ~~PARAGRAPH 1.~~
26 ~~(d) MULTIPLE FORMS OF COERCIVE CONTROL.~~
27 ~~2. THE EXTENT TO WHICH THE PARENT DENIED, DEFLECTED OR MINIMIZED~~
28 ~~THE DOMESTIC VIOLENCE DURING TREATMENT, FORENSIC ASSESSMENT, MANDATORY~~
29 ~~DISCLOSURE, FORMAL DISCOVERY OR COURTROOM PROCEEDINGS.~~
30 ~~3. WHETHER THE PARENT COMMITTED DOMESTIC VIOLENCE WITH SUFFICIENT~~
31 ~~SEVERITY OR FREQUENCY THAT THE PASSAGE OF TIME IS NOT A MITIGATING FACTOR.~~
32 ~~4. WHETHER THE CHILD HAS IMITATED ANY ASPECT OF THE PARENT'S~~
33 ~~DOMESTIC VIOLENCE BEHAVIORS.}}~~
34 ~~{{4. CONSIDER}}~~ ~~{{5.}}~~ ~~THE PARENT'S ATTENDANCE AT A DOMESTIC~~
35 ~~VIOLENCE TREATMENT PROGRAM. THE COURT MAY NOT CONSIDER A CERTIFICATE OF~~
36 ~~COMPLETION ALONE AS PROOF OF REHABILITATION. {{A PARENT WHO WISHES TO USE~~
37 ~~ATTENDANCE AT A DOMESTIC VIOLENCE TREATMENT PROGRAM AS REBUTTAL EVIDENCE~~
38 ~~MUST DO}}~~ ~~{{A CERTIFICATE OF COMPLETION MUST BE ACCOMPANIED BY}}~~ ~~ALL OF~~
39 ~~THE FOLLOWING:~~
40 ~~(a) {{WAIVE THE ASSOCIATED STATUTORY}}~~ ~~{{A WAIVER OF THE~~
41 ~~STATUTORY}}~~ ~~PRIVILEGE OR OTHER CONFIDENTIALITY NECESSARY TO RELEASE THAT~~
42 ~~PERSON'S TREATMENT RECORDS TO THE COURT AND THE VICTIM.~~
43 ~~(b) {{ESTABLISH}}~~ ~~{{PROOF}}~~ ~~THAT THE TREATMENT PROGRAM WAS BOTH~~
44 ~~RELEVANT AND PROPORTIONATE TO {{THE ACT OR ACTS OF}}~~ ~~{{ANY}}~~ ~~DOMESTIC~~
45 ~~VIOLENCE FOR WHICH {{THE PARENT WAS ADJUDICATED}}~~ ~~{{CREDIBLE EVIDENCE IS~~
46 ~~PRESENTED, TAKING INTO ACCOUNT THE CRITERIA THAT ARE OUTLINED IN THE~~

1 ARIZONA ADMINISTRATIVE CODE FOR THE TREATMENT OF MISDEMEANOR DOMESTIC
2 VIOLENCE OFFENDERS}}.

3 (c) ~~{{DEMONSTRATE AN}}~~ {{A DEMONSTRATED}} UNDERSTANDING OF HOW THE
4 PARENT'S ~~{{ACT OR ACTS OF}}~~ DOMESTIC VIOLENCE HARMED THE ~~{{FAMILY}}~~
5 {{CHILD AND OTHER PARENT}}.

6 (d) ~~{{PROVE}}~~ {{PROOF}} THAT THE TREATMENT PROGRAM ADDRESSED AND
7 HELPED REDUCE ANY TENDENCY TO MINIMIZE OR RATIONALIZE THE ~~{{ACT OR ACTS~~
8 ~~OF}}~~ {{PARENT'S}} DOMESTIC VIOLENCE.

9 ~~{{5. EVALUATE WHETHER A PARENT'S CHOSEN TREATMENT PROGRAM WAS~~
10 ~~RELEVANT AND PROPORTIONATE TO THAT PERSON'S HISTORY OF DOMESTIC VIOLENCE.~~
11 ~~IN MAKING THIS EVALUATION, THE COURT SHALL CONSIDER THE CRITERIA OUTLINED~~
12 ~~IN THE ARIZONA ADMINISTRATIVE CODE THAT GOVERNS TREATMENT STANDARDS FOR~~
13 ~~MISDEMEANOR DOMESTIC VIOLENCE OFFENDERS.~~

14 ~~H. IF THE PARENT WHO COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE~~
15 ~~FAILS TO OVERCOME THE MANDATORY PRESUMPTION PRESCRIBED IN SUBSECTION F OF~~
16 ~~THIS SECTION,}}~~

17 {{F. THE COURT SHALL DISREGARD ALL OF THE FOLLOWING FACTORS AS
18 IRRELEVANT TO THE MANDATORY PRESUMPTION IMPOSED BY SUBSECTION D OF THIS
19 SECTION:

20 1. THE CHILD'S ABSENCE FROM THE SCENE OF ANY DOMESTIC VIOLENCE.

21 2. THE CHILD'S UNAWARENESS THAT DOMESTIC VIOLENCE OCCURRED.

22 3. THE CHILD'S PREFERENCE FOR REINSTATING, MAINTAINING OR
23 INCREASING CONTACT WITH THE PARENT WHO COMMITTED DOMESTIC VIOLENCE.

24 G. THE COURT MAY NOT GRANT ANY OF THE FOLLOWING TO A PARENT WHO IS
25 RESTRICTED BY THE MANDATORY PRESUMPTION IMPOSED BY SUBSECTION D OF THIS
26 SECTION:

27 1. SOLE LEGAL DECISION-MAKING OR JOINT LEGAL DECISION-MAKING,
28 UNLESS THE PARENT OVERCOMES THE PRESUMPTION BY CLEAR AND CONVINCING
29 EVIDENCE.

30 2. UNSUPERVISED PARENTING TIME, UNLESS THE PARENT OVERCOMES THE
31 PRESUMPTION BY CLEAR AND CONVINCING EVIDENCE.

32 3. SUPERVISED PARENTING TIME, UNLESS THE PARENT OVERCOMES THE
33 PRESUMPTION BY A PREPONDERANCE OF THE EVIDENCE.

34 H. FOR A PARENT WHO HAS COMMITTED DOMESTIC VIOLENCE,}} THE COURT
35 SHALL {{ADOPT PRECAUTIONS THAT PRIORITIZE THE PERSONAL SAFETY AND
36 PHYSICAL, MENTAL AND EMOTIONAL WELL-BEING OF THE CHILD AND OTHER PARENT.
37 THESE PRECAUTIONS MAY}} DO ALL OF THE FOLLOWING:

38 ~~{{1. NOT GRANT JOINT LEGAL DECISION-MAKING OR SOLE LEGAL~~
39 ~~DECISION-MAKING AUTHORITY TO THAT PARENT.~~

40 ~~2. IMPOSE RESTRICTIONS ON THE MANNER AND FREQUENCY OF THAT PARENT'S~~
41 ~~INTERACTIONS WITH THE CHILD THAT ARE CONSISTENT WITH THE PROVEN ACT OR~~
42 ~~ACTS OF DOMESTIC VIOLENCE, INCLUDING ANY OF THE FOLLOWING:~~

43 ~~{{a}}}~~ {{1.}} {{ORDER}} {{REQUIRE}} THAT AN EXCHANGE OF THE CHILD
44 OCCUR IN A PROTECTED LOCATION OR A SAFE EXCHANGE LOCATION AS PRESCRIBED IN
45 SECTION 25-403.10 THAT IS SPECIFIED BY THE COURT.

46 ~~{{b}}}~~ {{2.}} LIMIT PARENTING TIME, INCLUDING A PROHIBITION ON
47 OVERNIGHT PARENTING TIME WITH THE CHILD.

1 ~~{{(c)}}~~ {{3.}} DESIGNATE A PROFESSIONAL AGENCY OR ONE OR MORE
2 ~~{{PERSONS}}~~ {{LAYPEOPLE}} TO SUPERVISE PARENTING TIME. THE COURT MAY NOT
3 APPOINT THE VICTIM OF ~~{{THE ACT OR ACTS OF}}~~ DOMESTIC VIOLENCE TO SERVE AS
4 THE SUPERVISOR, WHETHER ALONE OR WITH ANOTHER PERSON. THE COURT MAY NOT
5 APPOINT A ~~{{PERSON}}~~ {{LAYPERSON}} TO SUPERVISE PARENTING TIME UNLESS THE
6 PARENT BEING SUPERVISED AFFIRMS ~~{{TO THE COURT}}~~ THAT {{THE PARENT WILL
7 ENSURE THAT}} THE APPOINTED SUPERVISOR WILL DO ALL OF THE FOLLOWING:
8 ~~{{(1)}}~~ {{(a)}} RECEIVE AND READ THE COURT'S ORDER.
9 ~~{{(1)}}~~ {{(b)}} PROVIDE A RELIABLE TELEPHONE NUMBER, EMAIL ADDRESS
10 AND RESIDENTIAL ADDRESS TO BOTH PARENTS.
11 ~~{{(1)}}~~ {{(c)}} INTERVENE AND CONTACT AN APPROPRIATE LAW
12 ENFORCEMENT AGENCY, THE DEPARTMENT OF CHILD SAFETY AND THE OTHER PARENT IF
13 THE SUPERVISED PARENT'S BEHAVIOR ENDANGERS THE CHILD OR BECOMES
14 PSYCHOLOGICALLY ~~{{OR PHYSICALLY}}~~ ABUSIVE.
15 ~~{{(1)}}~~ {{(d)}} APPEAR FOR FUTURE COURT PROCEEDINGS AND TESTIFY
16 REGARDING THE SUPERVISION.
17 ~~{{(d) ORDER}}~~ {{4. REQUIRE}} THE PARENT WHO COMMITTED ~~{{THE ACT OR~~
18 ~~ACTS OF}}~~ DOMESTIC VIOLENCE TO PAY A FEE FOR THE COSTS OF SUPERVISED
19 PARENTING TIME.
20 ~~{{(e)}}~~ {{5.}} SUSPEND ACCESS TO THE CHILD, IN ANY FORM, UNTIL THE
21 PARENT WHO COMMITTED ~~{{AN ACT OR ACTS OF}}~~ DOMESTIC VIOLENCE CAN PETITION
22 ~~{{FOR A MODIFICATION OF}}~~ {{TO MODIFY}} LEGAL DECISION-MAKING OR PARENTING
23 TIME PURSUANT TO SECTION 25-411.
24 ~~{{(f) ORDER}}~~ {{6. REQUIRE}} THE PARENT WHO COMMITTED ~~{{THE ACT OR~~
25 ~~ACTS OF}}~~ DOMESTIC VIOLENCE TO ATTEND AND COMPLETE ~~{{AN ASSESSMENT OR}}~~ A
26 PROGRAM OF INTERVENTION FOR PERPETRATORS OF DOMESTIC VIOLENCE AND ANY
27 OTHER COUNSELING ~~{{THE COURT ORDERS}}~~.
28 ~~{{(g)}}~~ {{7.}} IF THE COURT FINDS THAT THE PARENT WHO COMMITTED
29 ~~{{THE ACT OR ACTS OF}}~~ DOMESTIC VIOLENCE HAS ALSO ABUSED ~~{{ANY SUBSTANCE,~~
30 ~~INCLUDING}}~~ ALCOHOL, ~~{{OTHER INTOXICANTS OR CONTROLLED SUBSTANCES, THE~~
31 ~~COURT MAY ORDER}}~~ {{REQUIRE}} THAT PARENT TO ABSTAIN FROM POSSESSING OR
32 CONSUMING ~~{{ALCOHOL, OTHER INTOXICANTS OR CONTROLLED SUBSTANCES}}~~ {{THAT
33 SUBSTANCE AND ORDER RANDOM TESTING TO ENSURE COMPLIANCE}}.
34 ~~{{(h)}}~~ {{8.}} REQUIRE A BOND FOR THE CHILD'S SAFE RETURN FROM THE
35 PARENT WHO COMMITTED ~~{{THE ACT OR ACTS OF}}~~ DOMESTIC VIOLENCE.
36 ~~{{(i) ORDER}}~~ {{9. REQUIRE}} THAT THE ADDRESS OF THE CHILD AND
37 OTHER PARENT REMAIN CONFIDENTIAL.
38 ~~{{(j)}}~~ {{10.}} IMPOSE ANY OTHER CONDITION THAT THE COURT
39 DETERMINES IS NECESSARY TO PROTECT THE CHILD, THE OTHER PARENT AND ANY
40 OTHER FAMILY OR HOUSEHOLD MEMBER.
41 I. THE COURT MAY NOT ORDER A VICTIM OF DOMESTIC VIOLENCE, WHETHER
42 THE CHILD OR A PARENT, TO JOIN THE PARENT WHO COMMITTED ~~{{AN ACT OR ACTS~~
43 ~~OF}}~~ DOMESTIC VIOLENCE IN ANY INPATIENT OR OUTPATIENT TREATMENT PROGRAM,
44 COUNSELING PROGRAM OR FORENSIC ASSESSMENT, WHETHER TELEPHONIC, VIRTUAL OR
45 IN PERSON.
46 J. IF A PARENT WHO ~~{{IS ADJUDICATED TO HAVE COMMITTED AN ACT OR~~
47 ~~ACTS OF}}~~ {{HAS COMMITTED}} DOMESTIC VIOLENCE FAILS TO OVERCOME THE

1 MANDATORY PRESUMPTION ~~{{PRESCRIBED IN}}~~ ~~{{IMPOSED BY}}~~ SUBSECTION ~~{{F}}~~
2 ~~{{D}}~~ OF THIS SECTION, THE PRESUMPTION SHALL ~~{{REMAIN UNTIL A}}~~ ~~{{CONTINUE~~
3 TO APPLY IN ANY}} SUBSEQUENT MODIFICATION PROCEEDING ~~{{PURSUANT TO}}~~
4 ~~{{COMMENCED UNDER}}~~ SECTION 25-411.]

5 ~~H.~~ [J.] K. The court may request or order the services of the
6 department of child safety if the court believes that a child may be the
7 victim of child abuse or neglect as defined in section 8-201.

8 ~~I.~~ [K.] L. In determining whether the absence or relocation of a
9 parent shall be weighed against that parent in determining legal decision-
10 making or parenting time, the court may consider whether the absence or
11 relocation was caused by an act of domestic violence by the other parent.

12 [L.] M. FOR THE PURPOSES OF THIS SECTION:

13 1. "COERCIVE CONTROL"{{:

14 ~~(a) MEANS A PATTERN OF THREATENING, HUMILIATING OR INTIMIDATING~~
15 ~~ACTIONS THAT IS USED TO HARM, PUNISH OR FRIGHTEN A PERSON.~~

16 ~~(b) INCLUDES ALL OF THE FOLLOWING:~~

17 ~~(i) A PATTERN OF BEHAVIOR THAT TAKES AWAY A PERSON'S LIBERTY OR~~
18 ~~FREEDOM.~~

19 ~~(ii) STRIPPING A PERSON'S SENSE OF SELF, BODILY INTEGRITY AND HUMAN~~
20 ~~RIGHTS.~~

21 ~~(iii) ISOLATING A PERSON FROM FRIENDS AND FAMILY.~~

22 ~~(iv) DEPRIVING A PERSON OF INDEPENDENCE.~~

23 ~~(v) REGULATING A PERSON'S EVERYDAY BEHAVIOR.~~

24 ~~(vi) MONITORING, SURVEILLING, REGULATING OR CONTROLLING A PERSON'S~~
25 ~~FINANCES, ECONOMIC RESOURCES OR ACCESS TO SERVICES, OR THOSE OF THE~~
26 ~~PERSON'S CHILD OR RELATIVE.~~

27 ~~(vii) MONITORING, SURVEILLING, REGULATING OR CONTROLLING A PERSON'S~~
28 ~~ACTIVITIES, COMMUNICATIONS OR MOVEMENTS, INCLUDING THROUGH THE USE OF~~
29 ~~TECHNOLOGY, OR THOSE OF THE PERSON'S CHILD OR RELATIVE.~~

30 ~~(viii) NAME-CALLING, DEGRADING OR DEMEANING A PERSON OR THE~~
31 ~~PERSON'S CHILD OR RELATIVE ON A FREQUENT BASIS.~~

32 ~~(ix) THREATENING TO HARM OR KILL A PERSON OR THE PERSON'S CHILD OR~~
33 ~~RELATIVE, INCLUDING WEARING, ACCESSING, DISPLAYING, USING OR CLEANING A~~
34 ~~WEAPON IN AN INTIMIDATING OR THREATENING MANNER.~~

35 ~~(x) THREATENING TO COMMIT SUICIDE OR SELF HARM, WHEN USED AS A~~
36 ~~METHOD OF COERCION, CONTROL, PUNISHMENT, INTIMIDATION OR RETALIATION~~
37 ~~AGAINST A PERSON.~~

38 ~~(xi) THREATENING TO HARM OR KILL AN ANIMAL THAT A PERSON OR THE~~
39 ~~PERSON'S CHILD OR RELATIVE HAS AN EMOTIONAL BOND WITH.~~

40 ~~(xii) THREATENING TO PUBLISH A PERSON'S SENSITIVE PERSONAL~~
41 ~~INFORMATION, INCLUDING SEXUALLY EXPLICIT MATERIAL, OR THOSE OF THE~~
42 ~~PERSON'S CHILD OR RELATIVE.~~

43 ~~(xiii) THREATENING TO MAKE REPORTS TO LAW ENFORCEMENT AUTHORITIES~~
44 ~~WITHOUT REASONABLE CAUSE.~~

45 ~~(xiv) DAMAGING A PERSON'S PROPERTY OR HOUSEHOLD GOODS, OR THOSE OF~~
46 ~~THE PERSON'S CHILD OR RELATIVE.~~

1 ~~(xv) THREATENING A PERSON OR THE PERSON'S CHILD OR RELATIVE WITH~~
2 ~~DEPORTATION, CONTACTING AUTHORITIES BASED ON PERCEIVED OR ACTUAL~~
3 ~~IMMIGRATION STATUS, WITHHOLDING ESSENTIAL DOCUMENTS REQUIRED FOR~~
4 ~~IMMIGRATION OR THREATENING TO WITHDRAW OR INTERFERE WITH AN ACTIVE~~
5 ~~IMMIGRATION APPLICATION OR PROCESS.~~
6 ~~(xvi) FORCING A PERSON OR THE PERSON'S CHILD OR RELATIVE TO TAKE~~
7 ~~PART IN CRIMINAL ACTIVITIES OR CHILD ABUSE.~~
8 ~~2. "COLLATERAL ACT" MEANS CONDUCT THAT, IN TIME, LOCATION, SEQUENCE~~
9 ~~AND CAUSATION, IS SUBSTANTIALLY DISTINCT FROM THE OCCURRENCES OR ACTS AT~~
10 ~~ISSUE BEFORE THE COURT.}}~~
11 {{MEANS A PATTERN OF VIOLENT, THREATENING, COERCIVE OR EMOTIONALLY ABUSIVE
12 CONDUCT BY ONE PARENT AGAINST THE OTHER, WITHOUT CONSENT OR JUSTIFICATION,
13 INCLUDING ANY OF THE FOLLOWING:
14 (a) SEXUAL OR OTHER PHYSICAL ASSAULT.
15 (b) THREATENING TO KILL OR INJURE A PERSON, INCLUDING ONESELF, OR A
16 HOUSEHOLD PET.
17 (c) DISPLAYING, ACCESSING, ASSEMBLING OR CLEANING A FIREARM OR
18 OTHER DANGEROUS WEAPON IN THE OTHER PARENT'S PRESENCE, IF THE
19 CIRCUMSTANCES IMPLY THAT WEAPON'S THREATENED USE IN VIOLATION OF STATE OR
20 FEDERAL LAW.
21 (d) CONFINEMENT OR OTHER RESTRAINING WORDS OR ACTIONS TO RESTRICT
22 THE OTHER PARENT'S FREEDOM OF MOVEMENT OR LAWFUL ACTIVITY.
23 (e) ISOLATION FROM FRIENDS AND FAMILY.
24 (f) MONITORING OR REGULATING FINANCIAL ACTIVITY, ECONOMIC RESOURCES
25 OR ACCESS TO SERVICES.
26 (g) STALKING OR HARASSMENT.
27 (h) DEMEANING, DEGRADING OR HUMILIATING WORDS OR ACTIONS.
28 (i) THREATENING TO PUBLISH SENSITIVE INFORMATION, INCLUDING
29 SEXUALLY EXPLICIT MATERIAL, OF THE OTHER PARENT OR MEMBER OF THE OTHER
30 PARENT'S FAMILY.
31 (j) THREATENING TO MAKE REPORTS TO LAW ENFORCEMENT.
32 (k) THREATENING, INITIATING OR USING CIVIL LITIGATION, INCLUDING
33 PROCEEDINGS UNDER THIS TITLE OR SECTION 13-3602, TO DO EITHER OF THE
34 FOLLOWING:
35 (i) FORCE THE OTHER PARENT TO DEFEND AGAINST A LEGAL CLAIM THAT IS
36 FALSE OR FRIVOLOUS.
37 (ii) REGULATE OR RESTRICT THE OTHER PARENT'S LAWFUL OR
38 CONSTITUTIONALLY PROTECTED ACTIVITY.
39 (l) DAMAGING PROPERTY OWNED OR LAWFULLY POSSESSED BY THE OTHER
40 PARENT OR MEMBER OF THE OTHER PARENT'S FAMILY.
41 (m) BY ACT OR CONSCIOUS OMISSION, JEOPARDIZING THE IMMIGRATION
42 STATUS OF THE OTHER PARENT OR A MEMBER OF THE OTHER PARENT'S FAMILY.
43 (n) FORCING THE OTHER PARENT TO COMMIT A CRIME AGAINST THE OTHER
44 PARENT'S STATED WISHES.
45 (o) USING SURVEILLANCE OR TRACKING TECHNOLOGY TO FACILITATE OR
46 AGGRAVATE ANY OF THE BEHAVIORS LISTED IN THIS PARAGRAPH.}}
47 ~~{{3.}}~~ {{2.}} **"DOMESTIC VIOLENCE":**

1 (a) MEANS, WHEN PERPETRATED BY ONE PARENT AGAINST THE OTHER PARENT
2 OR AGAINST A MINOR CHILD LIVING IN EITHER PARENT'S HOUSEHOLD, ~~{{AN ACT OR~~
3 ~~ACTS CONSISTING OF}}~~ EITHER OF THE FOLLOWING:

4 (i) ~~{{DOMESTIC VIOLENCE AS DEFINED}}~~ ~~{{ANY ACT OR OFFENSE~~
5 ~~PRESCRIBED}}~~ IN SECTION 13-3601 ~~{{, SUBSECTION A}}~~.

6 (ii) COERCIVE CONTROL.

7 (b) DOES NOT INCLUDE ~~{{DEFENSE OF SELF OR ANOTHER IF THE DEFENSIVE~~
8 ~~ACTS WERE PROPORTIONATE TO THE ASSAULT AND THE PARENT CLAIMING~~
9 ~~SELF-DEFENSE DID NOT PROVOKE THE ALTERCATION.}}~~ ~~{{EITHER OF THE FOLLOWING:~~

10 ~~(i) DEFENSE OF ONESELF AS DESCRIBED IN SECTION 13-404.~~

11 ~~(ii) DEFENSE OF ANOTHER PERSON AS DESCRIBED IN SECTION 13-406.}}~~

12 Sec. 2. Section 25-404, Arizona Revised Statutes, is amended to
13 read:

14 25-404. Temporary orders

15 A. A party to a legal decision-making and parenting time proceeding
16 may move for a temporary order. This motion must be supported by
17 pleadings as provided in section 25-411. The court may award temporary
18 legal decision-making and parenting time under the standards of section
19 25-403 after a hearing, or, if there is no objection, solely on the basis
20 of the pleadings.

21 B. If a proceeding for dissolution of marriage or legal separation
22 is dismissed, any temporary legal decision-making or parenting time order
23 is vacated unless a parent or the child's custodian moves that the
24 proceeding continue as a legal decision-making or parenting time
25 proceeding and the court finds, after a hearing, that the circumstances of
26 the parents and the best interest of the child require that a legal
27 decision-making or parenting time plan decree be issued.

28 C. If a legal decision-making or parenting time proceeding
29 commenced in the absence of a petition for dissolution of marriage or
30 legal separation is dismissed, any temporary ~~custody~~ **LEGAL DECISION-MAKING**
31 **OR PARENTING TIME** order thereby is vacated.

32 ~~D. {{IF A PARTY TO A PROCEEDING FOR A TEMPORARY ORDER FOR LEGAL~~
33 ~~DECISION-MAKING OR PARENTING TIME PURSUANT TO THIS SECTION ALLEGES THAT~~
34 ~~THE OTHER PARTY COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE AS DEFINED~~
35 ~~IN SECTION 25-403.03, THE COURT SHALL MAKE WRITTEN FINDINGS REGARDING THE~~
36 ~~ALLEGATION OF THE ACT OR ACTS OF DOMESTIC VIOLENCE PURSUANT TO THE~~
37 ~~REQUIREMENTS OF SECTION 25-403.03.}}~~ ~~{{IF ANY PARTY TO A PROCEEDING FOR~~
38 ~~TEMPORARY LEGAL DECISION-MAKING OR PARENTING TIME ALLEGES DOMESTIC~~
39 ~~VIOLENCE AS DEFINED IN SECTION 25-403.03, THE COURT SHALL MAKE WRITTEN~~
40 ~~FINDINGS THAT ARE CONSISTENT WITH SECTION 25-403.03, SUBSECTION B. THESE~~
41 ~~FINDINGS MAY BE CONFINED TO EVIDENCE THAT IS ADMITTED AT A TEMPORARY~~
42 ~~ORDERS HEARING.}}~~

1 Sec. 3. Section 25-411, Arizona Revised Statutes, is amended to
2 read:

3 25-411. Modification of legal decision-making or parenting
4 time; affidavit; contents; military families; acts
5 of domestic violence

6 A. A person shall not make a motion to modify a legal
7 decision-making or parenting time decree earlier than one year after its
8 date, unless the court ~~permits~~ **ALLOWS** it to be made on the basis of
9 affidavits that there is reason to believe the child's present environment
10 may seriously endanger the child's physical, mental, moral or emotional
11 health. At any time after a joint legal decision-making order is entered,
12 a parent may petition the court for modification of the order on the basis
13 of evidence that domestic violence involving a violation of section
14 13-1201 or 13-1204, spousal abuse or child abuse occurred since the entry
15 of the joint legal decision-making order. Six months after a joint legal
16 decision-making order is entered, a parent may petition the court for
17 modification of the order based on the failure of the other parent to
18 comply with the provisions of the order. A motion or petition to modify
19 an order shall meet the requirements of this section. Except as otherwise
20 provided in this section, if a parent is a member of the United States
21 armed forces, the court shall consider the terms of that parent's military
22 family care plan to determine what is in the child's best interest during
23 that parent's military deployment.

24 B. If the parent with whom the parent's child resides a majority of
25 the time receives temporary duty, deployment, activation or mobilization
26 orders from the United States military that involve moving a substantial
27 distance away from the parent's residence, a court shall not enter a final
28 order modifying parental rights and responsibilities and parent-child
29 contact in an existing order until ninety days after the deployment ends,
30 unless a modification is agreed to by the deploying parent.

31 C. The court shall not consider a parent's absence caused by
32 deployment or mobilization or the potential for future deployment or
33 mobilization as the sole factor supporting a real, substantial and
34 unanticipated change in circumstances pursuant to this section.

35 D. On motion of a deploying or nondeploying, mobilizing or absent
36 military parent, the court, after a hearing, shall enter a temporary order
37 modifying parental rights and responsibilities or parent-child contact
38 during the period of deployment or mobilization if:

39 1. A military parent who has legal decision-making or parenting
40 time pursuant to an existing court order has received notice from military
41 leadership that the military parent will deploy or mobilize in the near
42 future.

43 2. The deployment or mobilization would have a material effect on
44 the military parent's ability to exercise parental rights and
45 responsibilities or parent-child contact.

1 E. On motion of a deploying parent, if reasonable advance notice is
2 given and good cause is shown, the court shall allow that parent to
3 present testimony and evidence by electronic means with respect to
4 parenting time or parent-child contact matters instituted pursuant to this
5 section if the deployment of that parent has a material effect on that
6 parent's ability to appear in person at a regularly scheduled hearing.
7 For the purposes of this subsection, "electronic means" includes
8 communication by telephone or video teleconference.

9 F. The court shall hear motions for modification because of
10 deployment as expeditiously as possible.

11 G. If a military parent receives military temporary duty,
12 deployment, activation or mobilization orders that involve moving a
13 substantial distance away from the military parent's residence or that
14 otherwise have a material effect on the military parent's ability to
15 exercise parenting time, at the request of the military parent, for the
16 duration of the military parent's absence the court may delegate the
17 military parent's parenting time, or a portion of that time, to a child's
18 family member, including a stepparent, or to another person who is not the
19 child's parent but who has a close and substantial relationship to the
20 minor child, if the court determines that is in the child's best interest.
21 The court shall not allow the delegation of parenting time to a person who
22 would be subject to limitations on parenting time. The parties shall
23 attempt to resolve disputes regarding delegation of parenting time through
24 the dispute resolution process specified in their parenting plan, unless
25 excused by the court for good cause shown. A court order pursuant to this
26 subsection does not establish separate rights to parenting time for a
27 person other than a parent.

28 H. All temporary modification orders pursuant to this section shall
29 include a specific transition schedule to facilitate a return to the
30 predeployment order within ten days after the deployment ends, taking into
31 consideration the child's best interests.

32 I. A decree or order that a court enters in contemplation of or
33 during the military deployment of a parent outside of the continental
34 United States shall specifically reference the deployment and include
35 provisions governing the legal decision-making or parenting time
36 arrangements, or both, of the minor child after the deployment ends.
37 Either parent may file a petition with the court after the deployment ends
38 to modify the decree or order, in compliance with subsection ~~E~~ M of this
39 section. The court shall hold a hearing or conference on the petition
40 within thirty days after the petition is filed.

41 J. The court may modify an order granting or denying parenting time
42 rights whenever modification would serve the best interest of the child,
43 but the court shall not restrict a parent's parenting time rights unless
44 it finds that the parenting time would endanger seriously the child's
45 physical, mental, moral or emotional health.

1 K. If after a legal decision-making or parenting time order is in
2 effect one of the parents is charged with a dangerous crime against
3 children as defined in section 13-705, child molestation as defined in
4 section 13-1410 or an act of domestic violence as prescribed in section
5 13-3601 in which the victim is a minor, the other parent may petition the
6 court for an expedited hearing. Pending the expedited hearing, the court
7 may suspend parenting time or change legal decision-making ex parte.

8 ~~[L. AN ALLEGATION OF AN ACT OR ACTS OF DOMESTIC VIOLENCE AS DEFINED~~
9 ~~IN SECTION 25-403.03 SHALL BE A PRIMARY FACTOR IN THE COURT'S~~
10 ~~CONSIDERATION OF MODIFICATION OF A LEGAL DECISION-MAKING OR PARENTING TIME~~
11 ~~ORDER. THE COURT SHALL ALLOW A PARENT TO PRESENT EVIDENCE OF AN ACT OR~~
12 ~~ACTS OF DOMESTIC VIOLENCE THAT OCCURRED BEFORE THE EXISTING LEGAL~~
13 ~~DECISION-MAKING OR PARENTING TIME ORDER.]~~

14 ~~[L. {{IN A PROCEEDING FOR MODIFICATION OF LEGAL DECISION-MAKING OR~~
15 ~~PARENTING TIME, THE COURT SHALL DECIDE A NEW ALLEGATION OF AN ACT OR ACTS~~
16 ~~OF DOMESTIC VIOLENCE BY APPLYING THE SAME PUBLIC POLICY, PRIORITIES,~~
17 ~~PROCEDURES AND DEFINITIONS PRESCRIBED IN SECTION 25-403.03.}} A PARENT WHO~~
18 ~~HAS {{BEEN ADJUDICATED TO HAVE COMMITTED AN ACT OR ACTS OF}} {{COMMITTED}}~~
19 ~~DOMESTIC VIOLENCE {{AS DEFINED IN SECTION 25-403.03}} AND WHO PREVIOUSLY~~
20 ~~FAILED TO REBUT THE MANDATORY PRESUMPTION {{PRESCRIBED IN}} {{IMPOSED BY}}~~
21 ~~SECTION 25-403.03, SUBSECTION {{F}} {{D}} REMAINS SUBJECT TO THE SAME~~
22 ~~PRESUMPTION IN ANY MODIFICATION PROCEEDING THAT IS BROUGHT PURSUANT TO~~
23 ~~THIS SECTION, REGARDLESS OF THE ALLEGATIONS {{THAT ARE}} MADE IN THE NEW~~
24 ~~{{MODIFICATION}} PLEADINGS. THE QUESTION OF WHETHER EVIDENCE NOW EXISTS~~
25 ~~TO OVERCOME THE MANDATORY PRESUMPTION {{PRESCRIBED IN}} {{IMPOSED BY}}~~
26 ~~SECTION 25-403.03, SUBSECTION {{F}} {{D}} SHALL BE RESOLVED, AS A~~
27 ~~PRELIMINARY MATTER, WHEN THE COURT DECIDES WHETHER A SUFFICIENT CHANGE OF~~
28 ~~CIRCUMSTANCES HAS OCCURRED TO ALLOW A MODIFICATION OF A LEGAL~~
29 ~~DECISION-MAKING OR PARENTING TIME ORDER.]~~

30 ~~L.~~ M. To modify any type of legal decision-making or parenting
31 time order a person shall submit an affidavit or verified petition setting
32 forth detailed facts supporting the requested modification and shall give
33 notice, together with a copy of the affidavit or verified petition, to
34 other parties to the proceeding, who may file opposing affidavits. The
35 court shall deny the motion unless it finds that adequate cause for
36 hearing the motion is established by the pleadings, in which case it shall
37 set a date for hearing on why the requested modification should not be
38 granted.

39 ~~M.~~ N. The court shall assess attorney fees and costs against a
40 party seeking modification if the court finds that the modification action
41 is vexatious and constitutes harassment.

42 ~~N.~~ O. Subsection ~~L.~~ M of this section does not apply if the
43 requested relief is for the modification or clarification of parenting
44 time and not for a change of legal decision-making.

Senate Amendments to H.B. 2995

1 <<Sec. 4. Emergency
2 {{This act is an emergency measure that is necessary to preserve the
3 public peace, health or safety and is operative immediately as provided by
4 law.}}>>
5 Sec. 5. Short title
6 This act may be cited as the "Alec and Lydia Act".

7 Enroll and engross to conform
8 Amend title to conform

J.D. MESNARD

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